

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No. _____

-----X
TARON JOHNSON,

Plaintiff,

Date Filed: Aug. 13, 2009

-against-

THE CITY OF NEW YORK, HENRY MANCEBO, and
ANTONIO PAGAN,

Defendants.
-----X

SUMMONS

Pursuant to CPLR 504(3), Plaintiff designates New York County as venue based upon where the cause of action arose.

TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned and required to serve upon Plaintiff's attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 13, 2009

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 
Peter M. Agulnick

Attorneys for Plaintiff

TARON JOHNSON

305 Broadway, Suite 1100

New York, New York 10007-1147

(212) 571-2266

(File # 257-001)

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK

C/O Michael A. Cardozo, Esq.

100 Church Street

New York, New York 10007

HENRY MANCEBO (Shield # 04227)

New York City Police Department

1 Police Plaza

New York, New York 10007

ANTONIO PAGAN (Shield #08223)

New York City Police Department

1 Police Plaza

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No. _____

TARON JOHNSON,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, HENRY MANCEBO, and
ANTONIO PAGAN,

Defendants.

-----X

Plaintiff TARON JOHNSON, through his counsel, for his complaint, states the following upon information and belief:

PARTIES

1. Plaintiff TARON JOHNSON is an individual who resides in New York County, New York State.

2. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation organized under the laws of the State of New York, in and as the City of New York.

3. Defendant HENRY MANCEBO is an individual who lives in New York State.

4. Defendant ANTONIO PAGAN is an individual who lives in New York State.

PREREQUISITES TO SUIT AGAINST THE CITY OF NEW YORK

5. Plaintiff has served timely Notice(s) of Claim upon Defendant CITY within 90 days after all causes of action described in this complaint arose that require the filing of a Notice of Claim as a prerequisite to commencing a lawsuit.

6. More than thirty days have elapsed since the service of the Notice(s) of Claim.

7. Defendant CITY and its comptroller have failed to pay the claims of Plaintiff.

8. Plaintiff has duly complied with all of the conditions precedent to the commencement of this action.

9. This action complies with all statutory requirements for timeliness.

FACTS

10. On January 31, 2009 at about 8:00 PM - 8:30 PM, Plaintiff, who is an African American, was lawfully at 1900 Lexington Avenue in New York, New York.

11. Plaintiff lived in the building at 1900 Lexington Avenue and, at the time, was working as a volunteer at a community center located on the ground level of the same building where Plaintiff lived where children's activities were taking place.

12. On this same date, Defendants HENRY MANCEBO and ANTONIO PAGAN were New York City Police officers (all collectively will be hereinafter referred to as "Defendant Police Officers.")

13. Plaintiff was standing inside the entrance to 1900 Lexington Avenue while volunteering at the community center. A friend of Plaintiff's had left the community center to drop a letter in a mailbox.

14. The police stopped Plaintiff's friend and put him up against a wall and started to search him despite having no legitimate reason to do so.

15. At this point, Plaintiff was standing at the entrance to 1900 Lexington Avenue watching what was occurring.

16. The police yelled rudely at Plaintiff something to the effect of "This does not concern you! Mind your own business!" at which point Plaintiff turned around and began to go back into the community center at 1900 Lexington Avenue.

17. However, Plaintiff, who only weights 150 pounds, was violently grabbed from behind by the Defendant Police Officers and smashed against a wall.

18. While they were doing this, Plaintiff explained that he lived there and that he had done nothing wrong yet the Defendant Police Officers did not care.

19. In response, one of the Defendant Police Officers came and grabbed Plaintiff's leg and threw Plaintiff on the ground and smashed his knee into Plaintiff's back.

20. Another of the Defendant Police Officers then sprayed Plaintiff in the face with mace or pepper spray, which caused Plaintiff to violently choke and think he was going to maybe die.

21. A reasonable person or police officer should have known that Plaintiff had committed no crime.

22. Defendant Police Officers had no warrant to stop and arrest Plaintiff.

23. Notwithstanding, Defendant Police Officers arrested Plaintiff and handcuffed him.

24. Prior to being handcuffed, Plaintiff attempted to inform Defendant Police Officers that he had committed no crime and that he did not want be handcuffed and go to jail, but Plaintiff went peacefully and submitted without resistance to the false arrest despite being brutalized and maced.

25. After being maced, Plaintiff requested medical attention but he was refused and, instead, Defendant Police Officers put Plaintiff in a van for about one-half an hour.

26. Finally, about forty minutes after being maced, an FDNY ambulance crew came and flushed Plaintiff's eyes out with water.

27. Plaintiff was subjected to a humiliating search and was deprived of all money and personal effects.

28. Plaintiff was then incarcerated in a cell with criminals.

29. Plaintiff remained in custody/incarceration for about over 24 hours.

30. While incarcerated, Plaintiff, who is a small individual of only 150 pounds, was harassed by other criminals, who tried to steal his food.

31. Plaintiff feared he would be beat or sexually assaulted by these criminals so he could not sleep for 24 hours straight.

32. A criminal proceeding was brought against Plaintiff entitled People of the State of New York v. Taron Johnson in the Criminal Court of the City of New York, New York County, under docket number 2009NY008588.

33. Defendant HENRY MANCEBO, in his sworn criminal complaint, claimed that Plaintiff was guilty of a crime for saying out loud, "GO AWAY AND CATCH REAL CRIMINALS. THIS IS BULLSHIT."

34. Needless to say, this was no basis to arrest anyone and it was a blatant violation Plaintiff's free-speech rights under the U.S. and New York Constitutions.

35. As a result of this criminal complaint, Plaintiff had to appear publicly as a criminal defendant in court and had to pay a criminal-defense attorney.

35. In addition, because of this arrest, Plaintiff's employer, Harlem Children's Zone, fired Plaintiff from his employment resulting in Plaintiff incurring further pecuniary loss.

36. Because the charges in the criminal proceeding had no merit, the Criminal Court of the City of New York, New York County, granted Plaintiff an ACD.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

37. Plaintiff repeats and re-alleges every allegation in this complaint.

38. Defendant Police Officers intended to confine and completely confined Plaintiff.

39. Plaintiff was cognizant of the confinement.

40. Plaintiff voiced strenuous objections to the confinement in which he did not consent.

41. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff in any way.

42. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiff and in violating Plaintiff's rights based upon, among other things, that he was African American.

43. Defendant Police Officers violated Plaintiff's civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, free-speech rights, and rights under the New York State Constitution; discriminated and profiled Plaintiff because he is African American; and used unlawful force and brutality

44. Pursuant to 42 U.S.C. § 1983, Plaintiff is entitled to damages from Defendant Police Officers for violations of Plaintiff's constitutionally protected civil rights.

45. Defendant CITY has maintained a system of review of police conduct which is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

46. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiff based upon improper reasons would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiff and in falsely arresting Plaintiff and others in the future.

47. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiff is also entitled to

damages from Defendant CITY for violations of Plaintiff's constitutionally protected civil rights against.

48. Finally, all Defendants are liable for paying Plaintiff an award of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

49. Plaintiff repeats and re-alleges every allegation in this complaint.

50. Defendant Police Officers intended to confine and completely confined Plaintiff.

51. Plaintiff was cognizant of the confinement.

52. Plaintiff voiced strenuous objections to the confinement in which he did not consent.

53. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff.

54. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiff.

55. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiff.

56. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiff.

THIRD CAUSE OF ACTION

(Battery)

57. Plaintiff repeats and re-alleges every allegation in this complaint.
58. Defendant Police Officers' acts were intentional.
59. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with the Plaintiff amounting to the civil tort of battery.
60. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiff.
61. Defendant CITY is, therefore, vicariously liable for the battery that Defendant Police Officers inflicted upon Plaintiff.
62. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION

(Negligence)

63. Plaintiff repeats and re-alleges every allegation in this complaint.
64. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.
65. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiff.
66. The actions of Defendant Police Officers caused Plaintiff to suffer damages.
67. Consequently, Defendant Police Officers are liable for negligence.
68. Defendant Police Officers acted within the scope of their duties as police

officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiff.

69. Defendant the CITY is, therefore, vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

70. In addition, all Defendants are liable for keeping Plaintiff incarcerated despite a court directive to release him.

71. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION

(Negligent Hiring and Retention)

72. Plaintiff repeats and re-alleges every allegation in this complaint.

73. Defendant the CITY had a duty to hire and retain competent police officers.

74. Defendant CITY knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.

75. Defendant CITY breached its duty to hire and retain competent police officers.

76. As a result of the CITY's breach, the Plaintiff suffered damages.

77. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant Police Officers.

SIXTH CAUSE OF ACTION

(Defamation)

78. Plaintiff repeats and re-alleges every allegation in this complaint.

79. Defendant Police Officers printed and/or uttered false and injurious statements concerning Plaintiff.

80. The false statements accused Plaintiff of having committed crime(s).

81. Defendants Police Officers published these false statements to third-parties.

82. Defendant Police Officers wrote and/or spoke the statements with malice, recklessness, negligence, and gross negligence.

83. Thus, Defendants Police Officers are liable for defamation per se.

84. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they defamed Plaintiff.

85. Defendant CITY is, therefore, vicariously liable for the defamation that Defendant Police Officers committed.

86. Thus, all Defendants are liable for defamation per se.

WHEREFORE, Plaintiff demands judgment as follows:

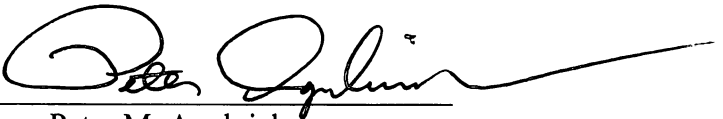
- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees, against all Defendants;

- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$1 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$1 million against Defendant CITY;
- (f) on the Sixth Cause of Action (defamation), actual and punitive damages in the amount of \$2 million against Defendant CITY; and
- (g) costs, disbursements, interest, and such other relief that is appropriate.

Dated: New York, New York
August 13, 2009

Yours, etc.,

PETER M. AGULNICK, P.C.

By 

Peter M. Agulnick

Attorney for Plaintiff

TARON JOHNSON

305 Broadway, Suite 1100

New York, New York 10007-1147

(212) 571-2266

(File # 257-001)

Index No. _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TARON JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, HENRY MANCEBO, and ANTONIO PAGAN,

Defendants.

SUMMONS and COMPLAINT

PETER M. AGULNICK, P.C.

Attorneys for Plaintiff TARON JOHNSON

**305 BROADWAY, SUITE 1100
NEW YORK, NEW YORK 10007-1147
TEL (212) 571-2266
FAX (212) 656-1645**

This office does not accept service of litigation papers by electronic means.

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: August 13, 2009

Signature: _____



Name: Peter M. Agulnick
